

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

COREY UNDERWOOD

Plaintiff(s)

Index No.:

-against-

P.O. DAMION PELOTTE AND
CITY OF NEW YORK

Defendant(s)

SUMMONS IN A CIVIL ACTION

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff/Plaintiff's Attorney(s) within twenty (20) days after service of this summons, exclusive of the day of service, where service is made upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 25, 2023

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY: _____

Michael H. Joseph, Esq.,
18 West 33rd Street, Suite 400
New York, NY 10001
Tel: 212-858-0503
Email: michael@newyorktriallawyers.org

SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff(s)

Index No.:

-against-

VERIFIED COMPLAINT

P.O. DAMION PELOTTE AND
CITY OF NEW YORK

Defendant(s)

JURY TRIAL DEMANDED

Plaintiff, by and through his undersigned attorneys, Law Office of Michael H. Joseph, PLLC, as for his complaint against Defendants states:

1. At all relevant times herein, plaintiff, Corey Underwood was and is a resident of the State of New York, and Kings County.
2. At all relevant times herein, Defendant P.O Damion Pelotte was and is a resident of the State of New York, and Bronx County.
3. At all relevant times herein, City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. On or about June 16, 2023 and at all times relevant herein, P.O. Damion Pelotte was a duly sworn police officer employed by the City of New York.
5. On or about June 16, 2023 and at all times relevant herein, Damion Pelotte was acting under the color of law and acting in the course and scope of his employment with City of New York.

COUNT I: FALSE ARREST UNDER NEW YORK STATE LAW

6. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
7. On or about June 16, 2023 at approximately 9:57 pm, Plaintiff was lawfully in on the front exterior portion of the premises located at 152 Courtlandt Avenue, in Bronx County, in the City and State of New York.
8. At the aforesaid date time and place, Defendant Damion Pelotte unlawfully seized, searched, and falsely arrested Plaintiff and created false police paperwork alleging that Plaintiff had an open container and was engaging behavior that constituted disorderly conduct.
9. At the aforesaid date, time, and place, Plaintiff had not committed any crime, did not have an open container of alcohol and was not engaging in any conduct that could be considered to be disorderly, nor was there any reasonable suspicion to believe that Plaintiff had committed a crime.
10. At the aforementioned time, date, and place, there was no probable cause or reasonable suspicion to believe that Plaintiff committed the aforesaid crimes, in that Plaintiff was sitting on the front steps of the building drinking a soda.
11. Defendants arrested, confined and caused Plaintiff to be deprived of his freedom and liberty, all without a cause, excuse, or justification and without Plaintiff's consent.
12. Defendant Damion Pelotte actions violated clearly established rights.
13. No reasonable officer in the position of Damion Pelotte would have believed the actions of the Defendants herein were objectively reasonable.

14. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of his freedom.
15. The Defendants are jointly and severally liable to the harms caused to Plaintiff.
16. Within ninety days after the occurrence complained of herein, Plaintiff served a verified notice of claim upon the City of New York based on the facts contained herein; more than 30 days have elapsed since the service of such notice and the Defendant has failed, neglected and refused to make adjustment or payment thereof; and, this action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.
17. A statutory hearing has been held and all prerequisites to suit have been fulfilled.
18. Defendant City of New York is vicariously liable for the acts and omissions of Damion Pelotte complained of herein, all of which were committed in the course and scope of employment based upon respondeat superior.
19. The amounts sought herein exceed the jurisdictional limits of all courts of inferior jurisdiction.

COUNT II: FALSE ARREST UNDER 42 U.S.C. § 1983

20. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
21. By making the aforesaid arrest of the Plaintiff, without probable cause, justification and privilege, Defendants' actions violated the Plaintiff's civil rights, including but not limited to his rights under the Fourth, Eighth, and Ninth Amendments of the United

States Constitution, including but not limited to, the right not to be unreasonably seized and searched, as well as his right to personal liberty.

22. As a direct and proximate result of the foregoing acts committed by the Defendants, Plaintiff suffered severe emotional harm, great humiliation, ridicule, mental anguish, depression, mental shock, mental trauma, and pain and was caused to be deprived of the rights and immunities guaranteed by the United States Constitution, as well as the constitution of the State of New York.
23. Defendants are liable to Plaintiff pursuant to 42 U.S.C. § 1983.

COUNT II: CUSTOM, POLICY, AND MONNELL LIABILITY

24. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length.
25. At all times relevant herein, City of New York had a custom, policy, and practice of improper hiring, training, and supervision, allowing and permitting constitutional violations, tacitly permitting the abuse of detainees by officers, and failing to discipline officers so that such deficiencies were likely to cause a violation of civil rights.
26. Defendants acted in accordance with the aforementioned custom, policy, and practice, in their arrest of the Plaintiff thereby allowing improper conduct to occur and failing to prevent the occurrences described herein.
27. The aforementioned customs, policies, and practices, proximately caused the constitutional violations against Plaintiff and the aforementioned harms and injuries to Plaintiff.
28. Defendants are jointly and severally liable.

COUNT III: ATTORNEYS FEES AND COSTS UNDER 42 U.S.C. § 1988

29. Plaintiff repeats, reiterates, and realleges each and every allegation contained above with the same force and effect as if fully set forth herein at length
30. The foregoing events constitute violations of Plaintiff's statutory and constitutional rights, thereby entitling her to attorneys fees, costs and disbursements as permitted by 42 U.S.C. § 1988.

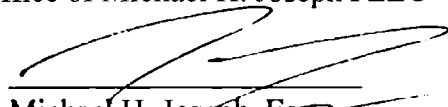
WHEREFORE, Plaintiff demands that judgment be entered for Plaintiff against Defendants in an amount to be determined by the trier of fact for compensatory and punitive damages, plus attorney's fees, interest, costs and disbursements, along with whatever further relief the Court deems just and proper.

Dated: New York, N.Y.
October 25, 2023

Yours etc.,

Law Office of Michael H. Joseph PLLC

BY:


Michael H. Joseph, Esq.,

18 West 33rd Street, Suite 400

New York, NY 10001

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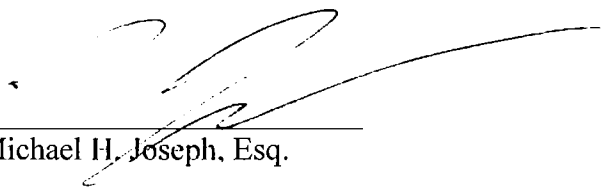
VERIFICATION

I, Michael H. Joseph, Esq. the undersigned, an attorney admitted to practice in the State of New York, state that I am a member of the LAW OFFICE OF MICHAEL H. JOSEPH, P.L.L.C. attorneys of records for Plaintiff in the within action; I have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same are true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matter I believe them to be true. The reason this verification is made by me and not by Plaintiff is because the Plaintiff currently is not in the county in which my office is located.

The grounds of my belief as to all matters not stated upon my own knowledge are the reports, records, memoranda in my file together with my own investigation.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, N.Y.
October 25, 2023



Michael H. Joseph, Esq.